**IN THE NATIONAL COMPANY LAW TRIBUNAL**
**CHANDIGARH (COURT – II)**
***(Through Hybrid Mode)***

**Item No. 103**

**COMP.APPL/128 (CH)2024**
**And**
**CA (CAA) No. 4/CHD/HP/2024**
**(1st Motion)**
**Petition Allowed on 16.04.2024)**
**(Connected with Item No. 131)**

**IN THE MATTER OF:**
**Inox Wind Energy Ltd. ... Transferor Company**

**Under Section: 230-232 CA 2013**
**Rule: 11 of NCLT Rules, 2016**

**Order delivered on 06.09.2024**

**CORAM:**
**SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)**
**SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)**

**PRESENT:**
**For the applicant in COMP.APPL/128 (CH)2024** : Mr. Nahush Jain, Advocate

**For the respondent in COMP.APPL/128 (CH)2024** : Mr. Anand Chhibbar, Senior Advocate with Mr. Dhritiman Bhattacharya, Mr. Rajat Khanna, Advocates

**ORDER**

**COMP.APPL/128 (CH)2024**

This application has been filed under Rule 11 of NCLT Rules, 2016 seeking appropriate directions from this Adjudicating Authority to direct the respondents to include the name of applicant in the list of unsecured creditors of Inox Wind Limited (Respondent No.2) attached to the First Motion Merger C.A. (CAA)/4/Chd/HP/2024 as Annexure Application D-12 for the consideration of merger and to allow the applicant to take part in the meeting of unsecured creditors scheduled to be held on 02.06.2024. It is stated by learned counsel for the applicant that now matter has been settled between

the parties and he will be withdrawing this application on instructions, on next date of hearing. Be that as it may be, the petitioner companies are directed to file the reconciliation of liability side of balance sheets of petitioner companies with their list of secured and unsecured creditors.

Let the matter be listed on 13.09.2024 in the Supplementary List.

Sd/- Sd/-

**(UMESH KUMAR SHUKLA)**
**HON'BLE MEMBER (T)**

**(HARNAM SINGH THAKUR)**
**HON'BLE MEMBER (J)**

September 06, 2024
Atiqur Rehman